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Case Number: 25TRCV01264 Hearing Date: June 23, 2026 Dept: P

Motion for Attorney's Fees and Costs

Moving Party: Plaintiff Arash Abbasiankashi

Responding Party: Defendant Jaguar Land Rover North America, LLC

RULING

The court considered the moving papers, opposition, and reply. Plaintiff's Motion for Attorney's Fees and Costs is GRANTED in the total amount of $24,776.43, consisting of $20,804.00 in previously incurred fees, $2,500.00 in anticipated fees, and $1,472.43 in costs.

PROCEDURAL BACKGROUND

On April 18, 2025, Plaintiff Arash Abbasiankashi ("Plaintiff") filed a complaint against Defendants Jaguar Land Rover North America, LLC ("Defendant") and DOES 1 through 50, inclusive, alleging four causes of action for: (1) Violation of Song Beverly Consumer Warranty Act; (2) Breach of Implied Warranties Pursuant to Song-Beverly; (3) Failure to Promptly Repurchase Product Pursuant to Song-Beverly; and (4) Failure to Commence Repairs Within a Reasonable Time and to Complete Them Within 30 Days Pursuant to Song-Beverly.

On September 2, 2025, Plaintiff filed a Notice of Settlement of Entire Case.

On February 23, 2026, Plaintiff filed the instant motion along with a Memorandum of Costs. On June 9, 2026, Defendant filed an opposition to the instant motion. On June 15, 2026, Plaintiff filed a reply.

FACTUAL BACKGROUND

Plaintiff alleges that on November 9, 2022, Plaintiff purchased a new 2023 Land Rover Defender (the "Subject Vehicle"). (Complaint, ¶ 8.) Plaintiff alleges that his purchase of the Subject Vehicle was accompanied by express warranties from Defendant. (Complaint, ¶ 8.) Plaintiff alleges that the Subject Vehicle was delivered to Plaintiff with serious defects and nonconformities to warranty and developed additional defects and nonconformities to warranty. (Complaint, ¶ 9.) Plaintiff alleges that he delivered the Subject Vehicle to one of Defendant's authorized repair facilities for repair of the nonconformities, but Defendant was unable to conform the Subject Vehicle to the applicable warranties after a reasonable number of repair attempts. (Complaint, ¶¶ 21-22.)

LEGAL STANDARD

Where the buyer of a vehicle prevails in an action under the Song-Beverly Act, the buyer “shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, Section 1794(d)).) The buyer has “the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount.” (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 817.)

“A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the ‘careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.” (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) “The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. The court may also consider whether the amount requested is based upon unnecessary or duplicative work.” (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

DISCUSSION

Moving Party’s Argument

Plaintiff seeks an award of $39,970.99, consisting of $27,691.20 in previously incurred attorney’s fees, $1,472.43 in costs and expenses, a 0.3 multiplier enhancement totaling $8,307.36, and $2,500.00 in anticipated fees to prepare the reply brief and attend the hearing regarding the instant motion. Plaintiff argues that all of the work performed by his counsel in this matter was required pursuant to the new statutory framework established by Code of Civil Procedure Section 871.20 et seq. Plaintiff argues that Section 871.26 imposes mandatory timelines and procedural obligations in automotive breach of warranty actions and that Plaintiff has strictly adhered to those requirements. Plaintiff argues that his counsel’s hourly rates are reasonable based on counsel’s experience and evidence showing that courts routinely award similar rates to lemon law counsel under similar circumstances. Plaintiff argues that this case required specialized knowledge including an understanding of the scope of consumer protection laws, knowledge of the intricacies of automobiles, and knowledge of automobile manufacturers’ policies for repairing vehicles. Next, Plaintiff argues that a 0.3 multiplier enhancement is warranted because the Subject Vehicle contained several defects, Plaintiff’s counsel obtained an excellent outcome for Plaintiff through settlement, and Plaintiff’s counsel risked not being paid if Plaintiff did not prevail.

Opposing Party’s Argument

In opposition, Defendant argues that this matter was a straightforward lemon law case and requests that the court reduce Plaintiff’s base fee request to $15,000.00 at most. Defendant argues that Plaintiff’s counsel’s hourly rates are unreasonably high given that this was a simple lemon law action. Next, Defendant argues that Plaintiff’s counsel’s total hours billed are excessive and thus should be cut by the court because there was no written discovery by Plaintiff, no depositions, taken, and no trial. Defendant specifically challenges Plaintiff’s counsel’s time billed for: (1) reviewing Defendant’s initial disclosures; (2) reviewing a notice of deposition for Plaintiff; (3) preparing initial disclosures; and (4) preparing the instant motion. Defendant also challenges several billing entries on the grounds that they describe clerical work. Next, Defendant argues that a multiplier is not warranted in this case because this was a garden-variety lemon law case that did not involve any novel questions of law, a high degree of skill was not required, the case resolved with minimal litigation activity such that it did not preclude other work, and Plaintiff’s action was not brough for charitable or taxpayer purposes.

Reply Argument

In reply, Plaintiff argues that Defendant's request to cap Plaintiff's fees at $15,000.00 is unsupported by the lodestar method. Plaintiff reiterates his argument that CCP Section 871.26 required Plaintiff's counsel to promptly investigate facts, review documents, prepare initial disclosures, and prepare for depositions and mediation. Plaintiff also reiterates his argument that his counsel's hourly rates are reasonable based on counsel's experience and the specialized nature of the work. In response to Defendant's objections, Plaintiff argues that his counsel's work performed after settlement was reasonable because the settlement had not been fully resolved. Plaintiff further argues that his counsel's time spent reviewing Defendant's discovery responses, coordinating Plaintiff's deposition, preparing initial disclosures, and preparing the instant motion was reasonable. Plaintiff argues that Defendant fails to identify specific billing entries as clerical. Finally, Plaintiff reiterates his argument that a 0.3 multiplier is warranted because counsel took the case on a contingent basis.

Merits of the Motion

A. Entitlement to Fees

The Song-Beverly Act provides that a buyer who prevails in their action is entitled to an award "as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual lime expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code Section 1794(d).)

Here, Plaintiff's counsel declares that the parties "reached a settlement in principle" during mediation on July 7, 2025. (Reza Decl., ¶ 11.) Plaintiff's counsel declares that Defendant provided a final settlement release to Plaintiff on January 8, 2026. (Reza Decl., ¶ 13.) Plaintiff's counsel further declares that the parties executed a Settlement Agreement and Release in January 2026. (Reza Decl., ¶ 15; Exh. C, p. 8.)

Due to the parties' settlement, the court finds that Plaintiff is the prevailing party, and thus Plaintiff is entitled to recover attorney's fees.

B. Reasonableness of Fees

1. Hourly Rates

Plaintiff's counsel declares that the timekeepers staffed on this matter bill at the following rates: firm founder and principal attorney Ashkan Reza - $575/hr; attorney Lauren Warwick - $375/hr; case manager and legal assistant Michelle Nguyen - $140/hr; case manager Dianne Martin - $125/hr; law clerk Donya Akradi - $258/hr; paralegal Mailei Bennett - $200/hr; case manager Lawrence Cavazos - $95/hr; and case manager Adriana Hernandez - $95/hr. (Reza Decl., ¶¶ 22, 24, 29-35.)

The court notes that a single entry by "Noemi" appears in Plaintiff's counsel's billing records, but this timekeeper is not addressed in Plaintiff's counsel's declaration or in the moving papers. Therefore, the court does not account for this timekeeper in ruling on the instant motion.

In assessing the reasonableness of hourly billing rates, "the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases." (569 East County Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 437.)

The court finds that requested rates for attorneys who are working on a contingency basis do not provide sufficient reference under the lodestar methodology. This is because the "charged" rates are never borne by a paying client. As a consequence, the court balances the requested rates with legal rates for similar areas of litigation involving straightforward legal claims such as this case which are actually paid by a client. Having conducted that analysis, the court finds that there is sufficient support for Lauren Warwick's requested hourly rate of $375 per hour. However, the court exercises its discretion to reduce Ashkan Reza's requested hourly rate to $500 per hour. In so doing, the court assesses the type of litigation, counsel's experience, and this court's knowledge of the prevailing hourly rate within the local legal community.

The court finds that there is sufficient support for case manager Dianne Martin's requested hourly rate of $125 per hour, case manager Lawrence Cavazos's requested hourly rate of $95 per hour, and case manager Adriana Hernandez's requested hourly rate of $95 per hour.

However, the court exercises its discretion to reduce case manager and legal assistant Michelle Nguyen's requested hourly rate to $125 per hour, law clerk Donya Akradi's requested hourly rate to $150 per hour, and paralegal Mailei Bennett's requested hourly rate to $150 per hour. The court bases its reductions on the timekeepers' experience and this court's knowledge of the prevailing hourly rates for non-attorney timekeepers within the local legal community.

2. Excessive Hours

Here, Defendant challenges Plaintiff's counsel's billing entries pertaining to: (1) reviewing Defendant's initial disclosures; (2) reviewing a notice of deposition for Plaintiff; (3) preparing initial disclosures; and (4) preparing the instant motion. Defendant argues that this was a straightforward lemon law case. Defendant also argues that the court should reduce Plaintiff's final requested lodestar figure.

In challenging attorneys' fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with sufficient arguments and citations to the evidence. (Premier Medical Management Systems, Inc. v. California Ins. Guaranty Assoc. (2008) 163 Cal.App.4th 550, 564.) General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice. (Ibid.)

Therefore, the court declines to reduce Plaintiff's final lodestar figure based on Defendant's general argument that Plaintiff's counsel's total hours billed are excessive. However, the court has reviewed each specific billing entry challenged by Defendant.

First, Defendant objects to Plaintiff's counsel's total 6.6 hours billed for reviewing Defendant's initial disclosures on the grounds that counsel unreasonably spent approximately five hours to review the Subject Vehicle's owner's manual and because the time billed by Plaintiff's counsel on July 22 and July 24, 2025 to review Defendant's initial disclosures is duplicative. The court has reviewed the challenged entries and finds that the total of 5.5 hours billed by Ashkan Reza to review Defendant's initial disclosure documents is excessive and exercises its discretion to reduce Ashkan Reza's total hours billed by 1.5 hours. (Reza Decl., Exh. D, p. 5.) The court also finds that Ashkan Reza's July 24, 2025 billing entry for reviewing Defendant's Initial Disclosures is duplicative in light of the time billed by Ashkan Reza to review Defendant's initial disclosure documents and the time billed by Lauren Warwick to review Defendant's initial disclosures. (Reza Decl., Exh. D, p. 5.) Therefore, the court exercises its discretion to reduce Ashkan Reza's total hours billed by an additional 0.6 hours.

Next, Defendant challenges the 1.2 hours billed by attorney Lauren Warwick on June 19 and June 23, 2025 to review Defendant's notice of deposition of Plaintiff and confirm scheduling with Plaintiff, because the notice did not have any requests for production attached and was a standard lemon law notice of deposition. The court agrees with Defendant that the total time billed here is excessive given that this was a routine lemon law case and because counsel billed for reviewing Defendant's notice of deposition twice. (Reza Decl., Exh. D, p. 4.) Therefore, the court exercises its discretion to reduce Lauren Warwick's total hours billed by 0.8 hours.

Defendant also challenges Plaintiff's counsel's total time billed for preparing initial disclosures because they were never served on Defendant and because the information and documents required for initial disclosures was standardized given the routine nature of this lemon law matter. Defendant has not identified any specific billing entries, and the court has not identified any billing entries for drafting Plaintiff's initial disclosures. The court has reviewed Lauren Warwick's May 23, 2025 entry for drafting a meet and confer letter regarding initial disclosures and mediation and finds the 0.4 hours billed here to be reasonable. (Reza Decl., Exh. D, p. 3.) The court also finds that total of 0.3 hours billed by Donya Akradi on May 28, 2025 for requesting initial disclosure documents and making a call regarding the initial disclosures to be reasonable. (Reza Decl., Exh. D, p. 3.) The court declines to reduce Plaintiff's counsel's total hours billed on this basis.

Finally, Defendant challenges Plaintiff's counsel's total time billed for preparing the instant motion and the time anticipated by counsel to prepare a reply brief and attend the hearing on the instant motion. Here, Defendant argues that the instant motion is "boilerplate" based on the routine nature of this lemon law action. The court has reviewed Plaintiff's counsel's February 15, 16, and February 17, 2026 billing entries pertaining to the instant motion. (Reza Decl., Exh. D, pp. 8-9.) The court has identified a total of 13.5 hours billed by Ashkan Reza to prepare the instant motion, excluding counsel's work preparing Plaintiff's memorandum of costs, which the court has found to be reasonable. Given the straightforward nature of this lemon law case, the court agrees with Defendant that Plaintiff's counsel's total time billed for preparing the instant motion is excessive. Therefore, the court exercises its discretion to reduce Ashkan Reza's total hours billed by 5.5 hours.

Regarding the $2,500.00 in fees anticipated by Plaintiff's counsel to prepare a reply brief and attend the hearing on the instant motion, the court finds that the fees requested are reasonable.

3. Clerical Work

Defendant argues that Plaintiff's counsel's billing record contains charges for clerical work that should not be included in the total fees awarded to Plaintiff. The court has reviewed Plaintiff's counsel's billing record and has identified entries billed for purely clerical tasks for which attorney's fees are unrecoverable. (See Missouri v. Jenkins by Agyei (1989) 491 U.S. 274, 288 n. 10 ("purely clerical or secretarial tasks should not be billed at a paralegal rate, regardless of who performs them.").)

Defendant has identified an April 14, 2025 entry by Michelle Nguyen for receiving documents from Plaintiff and adding them into legal software. (Reza Decl., Exh. D, p. 2.) The court finds that this is a purely clerical task and accordingly reduces Michelle Nguyen's total hours billed by 0.3 hours. Defendant also points to the April 17, 2025 entry by Michelle Nguyen reading, "[c]hange phase to Lit/pre-lit." (Reza Decl., Exh. D., p. 3.) The court finds the description of this task to be unclear and does not appear to describe a task for which fees are recoverable. Therefore, the court exercises its discretion to reduce Michelle Nguyen's total hours billed by an additional 0.1 hours.

Next, Defendant objects to the April 18, 2025 entry billed by Michelle Nguyen for filing the case. (Reza Decl., Exh. D, p. 3.) The court agrees that this is a purely clerical task and exercises its discretion to reduce Michelle Nguyen's total hours billed by 0.4 hours.

The court has also identified Donya Akradi's June 25, 2025 entry for "[s]av[ing] initial disclosure documents as PDF then sav[ing] into file." (Reza Decl., Exh. D, p. 4.) The court finds that this is a clerical task and exercises its discretion to reduce Donya Akradi's total hours billed by 0.1 hours.

Next, Defendant challenges Dianne Martin's July 10, 2025 entry for "[f]il[ing] Executed Protective Order for Initial Discovery." (Reza Decl., Exh. D., p. 4.) The court agrees that filing documents with the court is a purely clerical task and exercises its discretion to reduce Dianne Martin's total hours billed by 0.5 hours.

The court has also identified Dianne Martin's September 3, 2025 entry for "[g]et[ting] SAR and upload[ing] into folder." (Reza Decl., Exh. D, p. 6.) The court finds that the tasks of receiving a document and uploading it into a folder are clerical and exercises its discretion to reduce Dianne Martin's total hours billed by 0.2 hours.

Next, the court has identified Lawrence Cavazos's September 4, 2025 entry for "[s]end[ing] SAR for Client Signature + Send Client Recovery Sheet." (Reza Decl., Exh. D, p. 6.) Similarly, the court has identified a January 8, 2026 entry by Michelle Nguyen for "[o]btain[ing] SAR from client," and a January 8, 2026 entry by Dianne Martin for "[s]end[ing] Signed SAR to

Defense.” (Reza Decl., Exh. D., p. 8.) The court finds that the tasks of sending and receiving documents are purely clerical and exercises its discretion to reduce Lawrence Cavazos’s total hours billed by 0.2 hours, Michelle Nguyen’s total hours billed by 0.2 hours, and Dianne Martin’s total hours billed by 0.2 hours.

In sum, the court has reduced Plaintiff’s counsel’s total hours billed by 10.6 hours, consisting of reductions of 7.6 hours for Ashkan Reza, 0.8 hours for Lauren Warwick, 1.0 hour for Michelle Nguyen, 0.1 hours for Donya Akradi, 0.9 hours for Dianne Martin, and 0.2 hours for Lawrence Cavazos.

4. Multiplier

Plaintiff requests the application of a 0.3 multiplier totaling $8,307.36 which Defendant challenges as unwarranted.

To determine if a multiplier to an award for attorney’s fees is reasonable, the court will consider “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.)

Here, although this matter involves a contingency fee, Plaintiff has not presented evidence to indicate that this case involved any novel legal issues or required exceptional skill. Additionally, Plaintiff has not presented evidence to show that the nature of the litigation involved in this matter precluded other employment by Plaintiff’s counsel. Because the majority of the Ketchum factors do not support the award of a multiplier, Plaintiff’s request for a lodestar multiplier of 0.3 is denied.

Therefore, the court will reduce Plaintiff’s requested fees by $8,307.36.

Accordingly, Plaintiff’s Motion for Attorney’s Fees is GRANTED in the amount of $23,304.00, consisting of $20,804.00 in previously incurred attorney’s fees and $2,500.00 in fees anticipated regarding the instant motion.

C. Costs

Here, Plaintiff submitted a memorandum of costs on February 23, 2026. Defendant did not challenge any of the costs within Plaintiff’s memorandum.

Accordingly, Plaintiff’s request for $1,472.43 in costs is GRANTED.

CONCLUSION

Based on the foregoing, Plaintiff’s Motion for Attorney’s Fees and Costs is GRANTED in the total amount of $24,776.43, consisting of $20,804.00 in previously incurred fees, $2,500.00 in anticipated fees, and $1,472.43 in costs.

Prevailing party on motion is ordered to give notice of ruling.